



File No.: EXP202311288

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 18, 2023, a complaint was filed with registration number REGAGE23e00055643041 before the Spanish Agency for Data Protection against the UNIDENTIFIED responsible user of the Twitter profile A.A.A. (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that the Twitter/X user A.A.A., (...), published ***DATE.1 a video and a photo of a sexual nature in which he is shown engaging in sexual activity with two other men, displaying, apart from his face, his genitals (specifically in the video). He states that the incidents have been reported to the national police, but the video remains posted on the platform and views continue to increase. He also states that he has reported both publications on Twitter, receiving a response that they do not violate their rules. He provides a URL with the links to the Twitter content referenced in the complaint and a copy of the response obtained from the social network on ***DATE.2.

SECOND: On August 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary investigative actions

Article 67 of the LOPDGDD states the following regarding preliminary investigative actions:

"1. Before adopting the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate processing that involves massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of

Title VII of this organic law and may not exceed a duration of eighteen months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of the proceedings

In relation to the preliminary actions, the Regulation for the development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that “The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions.”

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, more than eighteen months have passed since the date of admission for processing of the complaint, and no agreement to initiate sanctioning proceedings has been issued and notified.

In the present case, the computation of the eighteen-month maximum duration of the preliminary actions began on August 21, 2023, and is currently still pending completion, so they must be declared expired.

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IV

Initiation of New Investigative Proceedings

On the other hand, Article 95.3 of the aforementioned LPACAP states that:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this. In any case, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed in the new procedure.”

In this regard, the National Court considers (Judgment of July 10, 2013) that “the declaration of the expiration of the prior investigative proceedings initiated by the Spanish Agency for Data Protection does not pose any obstacle for said entity to initiate or restart other prior investigative proceedings on the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

Consequently, taking into account that the prior investigative proceedings are agreed upon ex officio for the purpose of achieving a better determination of the facts and circumstances that justify the processing of the file, and given that this investigation has not concluded for the aforementioned purposes, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative proceedings as the alleged infringement has not prescribed.

Therefore, in accordance with the aforementioned, it is AGREED by the Presidency of the Spanish Agency for Data Protection:

FIRST: TO DECLARE the EXPIRATION of the present prior investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that integrates the prior proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to the complaining party.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the

Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

907-120624

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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